

Smt.Kamla Kailasiya vs Jasvant Singh on 4 May, 2017

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Cr.R.959/2012

Smt. Kamla Kailasiya

v.

Jasvant Singh & Anr.

04/05/2017

Shri Sushil Goswami, counsel for the applicant.

Shri D.R.Rahul, counsel for the respondents.

This revision under Section 397,401 of CrPC has been filed against the judgment dated 20/11/2012 passed by IXth ASJ, Gwalior in Criminal Appeal No.253/2012 by which the judgment and sentence dated 09/05/2012 passed by JMFC, Gwalior in Criminal Case No.1515/2007 was set aside and the respondents have been acquitted of the charge under Section 494,34 of IPC.

The necessary facts for the disposal of the present revision in short are that the applicant had filed a complaint against the respondents on the ground that she was married with the respondent no.1 in the year 1982 and total six children were born out of which four are still alive. The respondent no.1 with an intention to remarry had obtained the decree of divorce on false ground. Thereafter, the applicant filed an appeal against the judgment dated 21/09/2004 and the High Court, by order dated 22/11/2004 issued notice to the respondent no.1. In spite of the fact that the appeal was filed by the applicant within the period of limitation, the respondent no.1 performed second marriage with the respondent no.2 as per Hindu rites and rituals and, accordingly, it was alleged that the respondents have committed offence under Section 494,34 of IPC.

The Trial Court by judgment dated 09/05/2012 convicted the respondents for offence under Section 494,34 of IPC and sentenced them to undergo rigorous imprisonment of one year and fine of Rs.1,000/- with default imprisonment.

Being aggrieved by the judgment and sentence passed by the Trial Court, the respondents filed a criminal appeal which has been allowed by judgment dated 20/11/2012 and the respondents were acquitted.

Challenging the correctness and propriety of the judgment dated 20/11/2012 passed by the Appellate Court, it is submitted by the counsel for the applicant that she had filed an appeal against the decree of divorce within the period of limitation. The notices were issued. In spite of the statutory provision of Section 15 of Hindu Marriage Act, the respondent no.1 performed second marriage with the respondent no.2. Thus, it is submitted that the respondent no.1 has committed offence under Section 494 of IPC and since the respondent no.2 agreed to marry the respondent no.1 knowingly well that the appeal has already been filed, has committed offence under Section 494,34 of IPC.

Per contra, it is submitted by the counsel for the respondents that the appeal filed by the applicant

against the decree of divorce has also been dismissed by the High Court and the marital ties between the applicant and the respondent no.1 have been broken finally as the judgment passed by the High Court dismissing the appeal filed by the applicant has attained finality. It is further submitted by the counsel for the respondents that as the respondent no.1 did not receive any notice or information with regard to filing of the appeal by the applicant, therefore, it cannot be said that the respondent has committed any offence under Section 494 of IPC.

Heard the learned counsel for the parties and perused the record.

From the record, it does not appear that when the notice of appeal was served on the respondent no.2. There is nothing on record to show that the respondents were aware of the filing of the appeal by the applicant. It is also not in dispute that the appeal filed by the applicant against the decree of divorce has also been dismissed.

Section 15 of Hindu Marriage Act reads as under:-

"15. Divorced persons when may marry again.- When a marriage has been dissolved by a decree of divorce and either there is no right of appeal against the decree or, if there is such a right of appeal, the time for appealing has expired without an appeal having been presented or an appeal has been presented but has been dismissed, it shall be lawful for either party to the marriage to marry again."

From the plain reading of this provision, it is clear that a divorced person shall be entitled to marry again after the time of appealing has expired, without an appeal having been presented or an appeal has been presented but has been dismissed.

In the present case, there is nothing on record to show that the respondents were aware of the fact that the appeal has been presented within the period of limitation. There is nothing on record to show that the applicant, at any point of time, had ever tried to inform the respondents with regard to the presentation of the appeal within the period of limitation. Furthermore, as the marital ties of the applicant and the respondent no.1 have been broken, as the judgment passed by the High Court dismissing the appeal filed by the applicant has not been challenged and the said judgment has attained finality, this Court is of the view that no offence has been committed by the respondents. The Appellate Court has also acquitted the respondents for the offence under Section 494,34 of IPC.

It is well established principle of law that if two views are possible and if the Trial Court has adopted the view favoring the accused, then the same should not be interfered with unless and until it suffers from perversity.

The counsel for the applicant could not point out any perversity in the order passed by the Appellate Court.

Accordingly, this revision fails and is hereby dismissed.

AKS

(G.S.Ahluwalia)
Judge